

SOFTWARE AS A SERVICE AGREEMENT

This Software as a Service Agreement (this "Agreement") is entered into as of January 10, 2024 (the "Effective Date"), by and between:

CloudPlatform Solutions Inc., a Delaware corporation ("Vendor"), with its principal place of business at 800 Cloud Drive, Seattle, WA 98101

and

Acme Legal LLP, a limited liability partnership organized under the laws of New York ("Customer"), with its principal place of business at 425 Park Avenue, New York, NY 10022

RECITALS

WHEREAS, Vendor provides cloud-based legal practice management software and related services;

WHEREAS, Customer desires to subscribe to and use Vendor's software platform and services; and

WHEREAS, Vendor desires to provide such services to Customer under the terms and conditions set forth in this Agreement;

NOW, THEREFORE, in consideration of the mutual covenants and agreements hereinafter set forth and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

SECTION 1: SERVICES AND DELIVERABLES

1.1 Provision of Services. Subject to the terms and conditions of this Agreement, Vendor shall provide Customer with access to and use of Vendor's cloud-based legal practice management platform known as "CloudLegal Enterprise" (the "Platform"), including the following core modules:

(a) Case Management System: Matter tracking, document management, task assignment, calendar integration, and deadline management capabilities;

(b) Time and Billing Module: Time tracking, expense recording, invoice generation, trust accounting, and financial reporting tools;

(c) Client Portal: Secure client communication portal with document sharing, e-signature capabilities, and real-time case status updates;

(d) Legal Research Integration: Integration with third-party legal research databases and AI-powered legal research assistant;

(e) Document Automation: Template library, automated document assembly, and contract lifecycle management tools; and

(f) Analytics and Reporting: Customizable dashboards, matter profitability analysis, and firm-wide performance metrics.

1.2 Service Levels. Vendor commits to the following service level standards:

(a) Uptime Guarantee: The Platform shall be available 99.9% of the time, measured monthly, excluding scheduled maintenance windows;

(b) Scheduled Maintenance: Vendor may perform scheduled maintenance during the maintenance window of 2:00 AM to 6:00 AM Eastern Time on Sundays, with at least seventy-two (72) hours advance notice to Customer;

(c) Support Response Times: Vendor shall respond to support requests as follows:

(i) Critical Issues (system down): Within 1 hour

(ii) High Priority Issues (major functionality impaired): Within 4 hours

(iii) Medium Priority Issues (minor functionality impaired): Within 1 business day

(iv) Low Priority Issues (general questions): Within 2 business days

1.3 User Licenses. Customer is licensed for up to seventy-five (75) named users under the "Enterprise" subscription tier. Customer may add additional users by providing written notice to Vendor and paying the then-current per-user fee.

1.4 Implementation Services. Vendor shall provide the following implementation services at no additional charge:

(a) Initial system configuration and customization to Customer's practice areas (litigation, corporate, real estate, intellectual property);

(b) Data migration from Customer's existing practice management system (LegalPro 8.0), including up to 15,000 historical matters and associated documents;

(c) Integration with Customer's existing Microsoft 365 environment and accounting system (QuickBooks Enterprise);

(d) Four (4) on-site training sessions (two days each) for Customer's attorneys and staff; and

(e) Dedicated implementation manager for the ninety (90) day implementation period.

1.5 Ongoing Support and Training. Following implementation, Vendor shall provide:

- (a) 24/7 technical support via phone, email, and web portal;
- (b) Quarterly webinar training sessions on new features and best practices;
- (c) Access to Vendor's online knowledge base, video tutorials, and user community forum;
and
- (d) Dedicated customer success manager for strategic planning and optimization.

1.6 Service Credits. If Vendor fails to meet the uptime guarantee in Section 1.2(a) in any calendar month, Customer shall be entitled to the following service credits against the next month's fees:

- (a) Uptime 99.0% - 99.9%: 10% credit
- (b) Uptime 95.0% - 98.9%: 25% credit
- (c) Uptime below 95.0%: 50% credit

Service credits are Customer's sole remedy for failure to meet the uptime guarantee.

SECTION 2: FEES AND PAYMENT TERMS

2.1 Subscription Fees. Customer shall pay Vendor the following subscription fees:

- (a) Base Platform Fee: Eight Thousand Five Hundred Dollars (\$8,500) per month for up to 75 users;
- (b) Per Additional User: One Hundred Twenty Dollars (\$120) per month per additional user beyond the initial 75 users;
- (c) Storage: The base fee includes 5 TB of document storage; additional storage is available at Fifty Dollars (\$50) per TB per month; and
- (d) Premium Support: Customer has elected premium support at an additional One Thousand Five Hundred Dollars (\$1,500) per month, which includes priority routing and 1-hour response time for all issues.

Total Monthly Fees: Ten Thousand Dollars (\$10,000)

Total Annual Fees: One Hundred Twenty Thousand Dollars (\$120,000)

2.2 Implementation Fee. Customer shall pay a one-time implementation fee of Twenty-Five Thousand Dollars (\$25,000), payable as follows: (a) Fifty percent (\$12,500) due upon

execution of this Agreement, and (b) Fifty percent (\$12,500) due upon completion of implementation and Customer's acceptance of the Platform.

2.3 Payment Terms. Vendor shall invoice Customer monthly in advance on the first day of each month. All invoices are due and payable within thirty (30) days of the invoice date. Payment shall be made via ACH transfer to the bank account designated by Vendor or by wire transfer.

2.4 Late Payment. Any amounts not paid when due shall accrue interest at the rate of one and one-half percent (1.5%) per month or the maximum rate permitted by law, whichever is less. If any invoice remains unpaid for more than forty-five (45) days after the due date, Vendor may suspend Customer's access to the Platform upon ten (10) days' written notice, without liability.

2.5 Taxes. The fees set forth in this Agreement do not include any applicable sales, use, value-added, or other taxes. Customer shall be responsible for and shall pay all such taxes, other than taxes based on Vendor's net income. If Vendor is required to collect or pay such taxes, they shall be invoiced to and paid by Customer.

2.6 Annual Fee Adjustments. The subscription fees may be increased annually by Vendor upon ninety (90) days' written notice to Customer, provided that any such increase shall not exceed five percent (5%) of the then-current fees.

SECTION 3: INTELLECTUAL PROPERTY RIGHTS

3.1 Ownership of Platform. Vendor retains all right, title, and interest in and to the Platform, including all software, technology, documentation, templates, and any modifications, enhancements, or derivative works thereof. Customer acknowledges that it is obtaining only a limited right to use the Platform and that no ownership rights are being conveyed to Customer under this Agreement.

3.2 License Grant. Subject to the terms and conditions of this Agreement, Vendor grants to Customer a non-exclusive, non-transferable, non-sublicensable, worldwide license during the Term to access and use the Platform solely for Customer's internal law firm business purposes.

3.3 Restrictions on Use. Customer shall not, and shall not permit any third party to:

- (a) Copy, modify, or create derivative works of the Platform or any portion thereof;
- (b) Reverse engineer, decompile, disassemble, or otherwise attempt to derive the source code of the Platform;

(c) Rent, lease, lend, sell, sublicense, assign, distribute, or otherwise transfer rights to the Platform;

(d) Remove or alter any proprietary notices or labels on the Platform;

(e) Use the Platform for service bureau or time-sharing purposes or to provide services to third parties; or

(f) Use the Platform in any manner that violates applicable laws or regulations.

3.4 Customer Data Ownership. As between the parties, Customer retains all right, title, and interest in and to all data, content, and materials uploaded to or created within the Platform by Customer or its users (the "Customer Data"). Customer hereby grants to Vendor a limited, non-exclusive license to host, store, process, and transmit Customer Data solely as necessary to provide the Platform and services under this Agreement.

3.5 Feedback. If Customer provides any suggestions, enhancement requests, recommendations, or other feedback regarding the Platform ("Feedback"), Vendor shall have the right to use such Feedback without restriction or compensation to Customer. Customer hereby assigns to Vendor all right, title, and interest in any such Feedback.

3.6 Third-Party Components. The Platform may include or incorporate third-party software components that are subject to open source or third-party licenses. Such components are licensed to Customer under the terms of the applicable third-party licenses, and nothing in this Agreement limits Customer's rights under such licenses.

SECTION 4: DATA PROTECTION AND SECURITY

4.1 Data Security Measures. Vendor shall implement and maintain appropriate technical and organizational security measures designed to protect Customer Data against unauthorized access, use, alteration, or disclosure. Such measures include:

(a) Encryption of Customer Data in transit using TLS 1.3 or higher and at rest using AES-256 encryption;

(b) Multi-factor authentication for all user accounts;

(c) Role-based access controls and audit logging of all system access and activities;

(d) Regular security assessments, vulnerability scanning, and penetration testing by independent third parties;

(e) Intrusion detection and prevention systems;

- (f) Annual SOC 2 Type II audits, with reports made available to Customer upon request; and
- (g) Incident response plan and procedures for security breach notification.

4.2 Data Privacy Compliance. Vendor shall comply with all applicable data protection and privacy laws, including but not limited to the General Data Protection Regulation (GDPR), the California Consumer Privacy Act (CCPA), and the Health Insurance Portability and Accountability Act (HIPAA) to the extent applicable. The parties acknowledge that Customer is the data controller and Vendor is the data processor with respect to any personal data contained in Customer Data.

4.3 Data Processing Agreement. The parties shall execute Vendor's standard Data Processing Agreement (attached as Exhibit A), which shall govern the processing of personal data under this Agreement and include required provisions regarding data subject rights, sub-processors, data transfers, and security obligations.

4.4 Data Location and Transfers. Customer Data shall be hosted in Vendor's data centers located in the United States (specifically, AWS US-East-1 region in Virginia and US-West-2 region in Oregon). Vendor shall not transfer Customer Data outside the United States without Customer's prior written consent, except as necessary to provide support services, in which case Vendor shall ensure appropriate safeguards are in place.

4.5 Data Backup and Recovery. Vendor shall:

- (a) Perform incremental backups of Customer Data at least once per day and full backups at least once per week;
- (b) Store backup copies in geographically separate data centers;
- (c) Maintain backups for a minimum of thirty (30) days; and
- (d) Test backup restoration procedures quarterly and provide recovery time objective (RTO) of 4 hours and recovery point objective (RPO) of 24 hours.

4.6 Security Incidents. Vendor shall notify Customer within twenty-four (24) hours of becoming aware of any security incident that results in unauthorized access to, or acquisition, alteration, deletion, or disclosure of Customer Data. Vendor shall promptly investigate the incident, take steps to mitigate harm, and provide Customer with all reasonably requested information regarding the incident.

4.7 Audits. Customer may, upon reasonable notice and no more than once per year, audit Vendor's security practices and controls, either by conducting an on-site audit or by reviewing Vendor's most recent SOC 2 Type II report. Vendor shall cooperate with any such audit and provide reasonable assistance.

SECTION 5: WARRANTIES AND DISCLAIMERS

5.1 Vendor Warranties. Vendor represents and warrants that:

- (a) Platform Performance: The Platform shall perform substantially in accordance with the documentation provided by Vendor, and Vendor shall use commercially reasonable efforts to correct any material non-conformities reported by Customer;
- (b) Authority: Vendor has the full right, power, and authority to enter into this Agreement and to grant the rights granted herein;
- (c) No Infringement: The Platform, as provided by Vendor, does not infringe upon or misappropriate any intellectual property rights of any third party;
- (d) Malicious Code: Vendor shall use commercially reasonable efforts to ensure that the Platform does not contain any viruses, worms, Trojan horses, or other malicious code; and
- (e) Compliance with Laws: Vendor shall comply with all applicable federal, state, and local laws and regulations in providing the Platform and services.

5.2 Customer Warranties. Customer represents and warrants that:

- (a) Authority: Customer has the full right, power, and authority to enter into this Agreement;
- (b) Compliance: Customer's use of the Platform shall comply with all applicable laws and regulations and the Acceptable Use Policy (Exhibit B); and
- (c) Data Rights: Customer has all necessary rights to upload Customer Data to the Platform and to grant Vendor the license set forth in Section 3.4.

5.3 Disclaimer of Warranties. EXCEPT AS EXPRESSLY PROVIDED IN SECTION 5.1, THE PLATFORM AND ALL SERVICES ARE PROVIDED "AS IS" AND "AS AVAILABLE." TO THE MAXIMUM EXTENT PERMITTED BY LAW, VENDOR DISCLAIMS ALL OTHER WARRANTIES, WHETHER EXPRESS, IMPLIED, OR STATUTORY, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. VENDOR DOES NOT WARRANT THAT THE PLATFORM WILL BE UNINTERRUPTED, ERROR-FREE, OR COMPLETELY SECURE, OR THAT ALL ERRORS WILL BE CORRECTED.

SECTION 6: LIMITATION OF LIABILITY

6.1 Consequential Damages Waiver. TO THE MAXIMUM EXTENT PERMITTED BY LAW, IN NO EVENT SHALL EITHER PARTY BE LIABLE TO THE OTHER PARTY OR ANY THIRD PARTY FOR

ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING BUT NOT LIMITED TO LOST PROFITS, LOST REVENUE, LOST DATA, OR BUSINESS INTERRUPTION, ARISING OUT OF OR RELATING TO THIS AGREEMENT, WHETHER BASED ON CONTRACT, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY, OR ANY OTHER LEGAL THEORY, EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

6.2 Liability Cap. EXCEPT FOR THE EXCLUDED CLAIMS LISTED IN SECTION 6.3, EACH PARTY'S TOTAL AGGREGATE LIABILITY ARISING OUT OF OR RELATING TO THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID OR PAYABLE BY CUSTOMER TO VENDOR IN THE TWELVE (12) MONTH PERIOD IMMEDIATELY PRECEDING THE EVENT GIVING RISE TO LIABILITY.

6.3 Exceptions to Limitations. The limitations set forth in Sections 6.1 and 6.2 shall not apply to:

- (a) Either party's indemnification obligations under Section 6.4;
- (b) Either party's breach of Section 4 (Data Protection and Security) or Section 7.4 (Confidentiality);
- (c) Customer's payment obligations under Section 2;
- (d) Either party's gross negligence or willful misconduct; or
- (e) Claims arising from violation of the other party's intellectual property rights.

6.4 Indemnification.

(a) By Vendor: Vendor shall indemnify, defend, and hold harmless Customer and its partners, employees, and agents from and against any and all third-party claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to any claim that the Platform, as provided by Vendor, infringes or misappropriates any intellectual property right of a third party. If the Platform becomes, or in Vendor's opinion is likely to become, the subject of an infringement claim, Vendor may, at its option and expense: (i) procure for Customer the right to continue using the Platform; (ii) replace or modify the Platform to make it non-infringing; or (iii) if neither option is commercially reasonable, terminate this Agreement and refund to Customer any prepaid fees for the remainder of the Term.

(b) By Customer: Customer shall indemnify, defend, and hold harmless Vendor and its officers, directors, employees, and agents from and against any and all third-party claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to: (i) Customer Data; (ii) Customer's use of the Platform in violation of this

Agreement or applicable law; or (iii) any claim that Customer Data infringes or misappropriates any intellectual property right or violates any privacy right of a third party.

(c) Indemnification Procedures: The indemnified party shall promptly notify the indemnifying party in writing of any claim for which indemnification is sought. The indemnifying party shall have the right to control the defense and settlement of any such claim, provided that it shall not settle any claim without the indemnified party's prior written consent if such settlement would require the indemnified party to admit liability or take or refrain from taking any action. The indemnified party shall cooperate with the indemnifying party in the defense of any claim.

SECTION 7: TERM AND TERMINATION

7.1 Initial Term. This Agreement shall commence on the Effective Date and continue for an initial term of three (3) years (the "Initial Term"), unless earlier terminated in accordance with this Section 7.

7.2 Renewal Term. Following the Initial Term, this Agreement shall automatically renew for successive one (1) year periods (each a "Renewal Term") unless either party provides written notice of non-renewal at least ninety (90) days prior to the end of the then-current term. The Initial Term and any Renewal Terms are collectively referred to as the "Term."

7.3 Termination for Cause. Either party may terminate this Agreement for cause upon written notice to the other party if:

- (a) The other party materially breaches this Agreement and fails to cure such breach within thirty (30) days after receipt of written notice thereof; or
- (b) The other party becomes insolvent, makes an assignment for the benefit of creditors, or has a receiver or trustee appointed for its business or assets, or any proceeding is instituted by or against the other party under any bankruptcy, insolvency, or debtor's relief law.

7.4 Termination for Convenience. Customer may terminate this Agreement for convenience upon ninety (90) days' written notice to Vendor, provided that Customer shall remain obligated to pay all fees through the end of the then-current term.

7.5 Effect of Termination.

- (a) Cessation of Access: Upon termination or expiration of this Agreement for any reason, Customer's right to access and use the Platform shall immediately cease.
- (b) Data Retrieval: For a period of thirty (30) days following termination or expiration (the "Retrieval Period"), Vendor shall make Customer Data available to Customer for retrieval in

a commonly used format (CSV or JSON). Customer shall be responsible for retrieving all Customer Data during the Retrieval Period. Vendor may charge Customer a reasonable fee for providing extended data retrieval assistance.

(c) Data Deletion: Following the Retrieval Period, Vendor shall delete all Customer Data from its systems within sixty (60) days, except to the extent Vendor is required to retain copies by applicable law or as necessary for backup and disaster recovery purposes in accordance with Vendor's standard data retention policies.

(d) Survival: Sections 3 (Intellectual Property Rights), 4.6 (Security Incidents), 4.7 (Audits), 5.3 (Disclaimer), 6 (Limitation of Liability), 7.5 (Effect of Termination), and 8 (General Provisions) shall survive any termination or expiration of this Agreement.

(e) Refunds: Upon termination by Customer for cause pursuant to Section 7.3, Vendor shall refund to Customer any prepaid fees for the remainder of the then-current term. Upon termination by Vendor for cause pursuant to Section 7.3, Customer shall pay all outstanding fees through the effective date of termination, and no refund shall be due.

SECTION 8: GENERAL PROVISIONS

8.1 Confidentiality. Each party (the "Receiving Party") acknowledges that it may receive or have access to confidential information of the other party (the "Disclosing Party") in connection with this Agreement. "Confidential Information" means any information disclosed by one party to the other party, either directly or indirectly, in writing, orally, or by inspection of tangible objects, that is designated as "Confidential," "Proprietary," or with similar designation, or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure. The Receiving Party shall: (a) protect the confidentiality of the Disclosing Party's Confidential Information using the same degree of care it uses for its own confidential information, but in no event less than reasonable care; and (b) not use the Disclosing Party's Confidential Information except as necessary to perform its obligations or exercise its rights under this Agreement.

8.2 Notices. All notices required or permitted under this Agreement shall be in writing and shall be deemed given when: (a) delivered personally; (b) sent by confirmed facsimile or email; (c) sent by commercial overnight courier with written verification of receipt; or (d) three (3) business days after having been sent by registered or certified mail, return receipt requested, postage prepaid. Notices shall be sent to the addresses set forth in the preamble to this Agreement or to such other address as either party may designate by notice to the other.

8.3 Governing Law and Jurisdiction. This Agreement shall be governed by and construed in accordance with the laws of the State of Washington, without regard to its conflicts of law principles. Any legal action or proceeding arising out of or relating to this Agreement shall

be brought exclusively in the federal or state courts located in King County, Washington, and each party hereby consents to the jurisdiction of such courts.

8.4 Entire Agreement. This Agreement, including all exhibits attached hereto, constitutes the entire agreement between the parties concerning the subject matter hereof and supersedes all prior or contemporaneous agreements, understandings, negotiations, and discussions, whether oral or written, between the parties.

8.5 Amendment. This Agreement may be amended or modified only by a written instrument executed by both parties. Notwithstanding the foregoing, Vendor may update the Acceptable Use Policy and other policy documents upon thirty (30) days' notice to Customer.

8.6 Assignment. Neither party may assign this Agreement without the prior written consent of the other party, except that either party may assign this Agreement without consent to an affiliate or to a successor in connection with a merger, acquisition, or sale of all or substantially all of its assets. Any attempted assignment in violation of this Section shall be void.

8.7 Force Majeure. Neither party shall be liable for any failure or delay in performing its obligations under this Agreement (except for payment obligations) to the extent such failure or delay is caused by circumstances beyond its reasonable control, including but not limited to acts of God, natural disasters, war, terrorism, riots, labor disputes, government actions, or internet or telecommunications failures.

8.8 Severability. If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect, and such invalid, illegal, or unenforceable provision shall be replaced by a valid, legal, and enforceable provision that most closely approximates the original intent of the parties.

8.9 Waiver. No waiver of any provision of this Agreement shall be effective unless in writing and signed by the party against whom the waiver is sought to be enforced. No waiver of any breach or default shall constitute a waiver of any subsequent breach or default.

8.10 Independent Contractors. The parties are independent contractors, and this Agreement shall not be construed to create a partnership, joint venture, agency, or employment relationship between them.

8.11 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. Electronic signatures shall be deemed original signatures for all purposes.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

CLOUDPLATFORM SOLUTIONS INC.

By: _____

Name: Sarah Thompson

Title: Chief Revenue Officer

Date: _____

ACME LEGAL LLP

By: _____

Name: Michael Davidson

Title: Managing Partner

Date: _____